



THE CIVIL SERVANTS ACT, 1973



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THE PAKISTAN CODE

THE CIVIL SERVANTS ACT, 1973

¹ ACT NO. LXXI OF 1973

[26th September, 1973]

An Act to regulate the appointment of persons to, and the terms and conditions of service of persons in, the service of Pakistan.

WHEREAS it is expedient to regulate by law, the appointment of persons to, and the terms and conditions of service of persons in, the service of Pakistan, and to provide for matters connected therewith or ancillary thereto ;

It is hereby enacted as follows:—

1. Short title, application and commencement.—(1) This Act may be called the Civil Servants Act, 1973.

(2) It applies to all civil servants wherever they may be.

(3) It shall come into force at once.

CHAPTER I PRELIMINARY

2. Definitions. —(1) In this Act, unless there is anything repugnant in the subject or context,—

- (a) “*ad-hoc* appointment” means appointment of a duly qualified person made otherwise than in accordance with the prescribed method of recruitment, pending recruitment in accordance with such method ;
- (b) “civil servant” means a person who is a member of an All-Pakistan Service or of a civil service of the Federation, or who holds a civil post in connection with the affairs of the Federation, including any such post connected with defence, but does not include—
 - (i) a person who is on deputation to the Federation from any Province or other authority ;
 - (ii) a person who is employed on contract, or on work-charged basis or who is paid from contingencies ; or
 - (iii) a person who is a “worker” or “workman” as defined in the Factories Act, 1934 (XXV of 1934), or the Workmen's Compensation Act, 1923 (VIII of 1923) ;
- (c) “initial appointment” means appointment made otherwise than by promotion or transfer ;

¹ For Statement of Objects and Reasons, see Gaz. of P., 1973, Ext., Pt. III, p. 1470.

- (d) “pay” means the amount drawn monthly by a civil servant as pay and includes technical pay, special pay, personal pay and any other emoluments declared by the prescribed authority to be pay ;
- (e) “permanent post” means a post sanctioned without limit of time ;
- (f) “prescribed” means prescribed by rules ;
- (g) “rules” means rules made or deemed to have been made under this Act ;
- (h) “selection authority” means the Federal Public Service Commission, a departmental selection board, departmental selection committee or other authority or body on the recommendation of, or in consultation with which any appointment or promotion, as may be prescribed, is made ; and
- (i) “temporary post” means a post other than a permanent post.

(2) For the purposes of this Act, an appointment, whether by promotion or otherwise, shall be deemed to have been made on regular basis if it is made in the prescribed manner.

CHAPTER II

TERMS AND CONDITIONS OF SERVICE OF CIVIL SERVANTS

3. Terms and conditions.—¹[(1)] The terms and conditions of service of a civil servant shall be as provided in this Act and the rules].

²[(2) The terms and conditions of service of any person to whom this Act applies shall not be varied to his disadvantage.]

³[(3) The Federal Government may transfer a civil servant of a devolved Ministry or Division, working in an Attached Department or Subordinate Office situated in a Province, to the Province concerned, in consequence of the devolution of functions pursuant to the Constitution (Eighteenth Amendment) Act, 2010 (X of 2010) and thereby he shall become the civil servant of the respective Province, on the same terms and conditions of service as were applicable to him before such transfer.

(4) The Federal Government may transfer a civil servant working in a Ministry, Division, Attached Department or Subordinate Office located in the Islamabad Capital Territory to any other Ministry, Division, Attached Department or Subordinate Office, in consequence of the abolition of such Ministry, Division, Attached Department or Subordinate Office pursuant to the Constitution (Eighteenth Amendment) Act, 2010 (X of 2010) and thereby he shall become the civil servant of the respective Ministry, Division, Department or Office to which he is so transferred, on the same terms and conditions of service as were applicable to him before such transfer.

¹Re-numbered by the Civil Servants (Amdt.) Act 1996 (5 of 1996), s. 2.

²Cl. (2) added *ibid.*, s. 2.

³Added by Act IX of 2016 s. 2.

(5) The seniority of the civil servants transferred by virtue of sub-sections (3) and (4) shall be determined by the concerned Province, Ministry or Division, as the case may be, in accordance with the rules.

(6) The cases of civil servants of a Ministry, Division, Attached Department or Subordinate Office devolved in pursuant to the Constitution (Eighteenth Amendment) Act, 2010 (X of 2010) and working in FATA, Gilgit Baltistan and AJK shall be dealt with in the manner as may be provided by an Order made by the President in this behalf.]

4. Tenure of office of civil servants. Every civil servant shall hold office during the pleasure of the President.

5. Appointments. Appointments to an All-Pakistan Service or to a civil service of the Federation or to a civil post in connection with the affairs of the Federation, including any civil post connected with defence, shall be made in the prescribed manner by the President or by a person authorised by the President in that behalf.

6. Probation. —(1) An initial appointment to a service or post referred to in section 5, not being an *ad hoc* appointment, shall be on probation as may be prescribed.

(2) Any appointment of a civil servant by promotion or transfer to a service or post may also be made on probation as may be prescribed.

(3) Where, in respect of any service or post, the satisfactory completion of probation includes the passing of a prescribed examination, test or course or successful completion of any training, a person appointed on probation to such service or post who, before the expiry of the original or extended period of his probation, has failed to pass such examination or test or to successfully complete course or the training shall, except as may be prescribed otherwise,—

- (a) if he was appointed to such service or post by initial requirement, be discharged; or
- (b) if he was appointed to such service or post by promotion or transfer be reverted to the service or post from which he was promoted or transferred and against which he holds a lien or, if there be no such service or post, be discharged:

Provided that, in the case of initial appointment to a service or post, a civil servant shall not be deemed to have completed his period of probation satisfactorily until his character and antecedents have been verified as satisfactory in the opinion of the appointing authority.

7. Confirmation. —(1) A person appointed on probation shall, on satisfactory completion of his probation, be eligible for confirmation in a service or, as the case may be, a post as may be prescribed.

(2) A civil servant promoted to a post ¹* * on regular basis shall be eligible for confirmation after rendering satisfactory service for the period prescribed for confirmation therein.

¹ Omitted by the Civil Servants (Amdt.) Ordinance, 1984 (3 of 1984), s. 2.

(3) There shall be no confirmation against any temporary post.

(4) A civil servant who, during the period of his service, was eligible to be confirmed in any service or against any post retires from service before being confirmed shall not, merely by reason of such retirement, be refused confirmation in such service or post or any benefits accruing therefrom.

(5) Confirmation of a civil servant in a service or post shall take effect from the date of occurrence of permanent vacancy in that service or post or from the date of continuous officiation, in such service or post, whichever is later.

8. Seniority —(1) For proper administration of a service, cadre or ¹[post], the appointing authority shall cause a seniority list of the members for the time being of such service, cadre or ¹[post] to be prepared, but nothing herein contained shall be construed to confer any vested right to a particular seniority in such service, cadre or ¹[post], as the case may be.

(2) Subject to the provisions of sub-section (1), the seniority of a civil servant shall be reckoned in relation to other civil servants belonging to the same ¹[service or cadre], whether serving in the same department or office or not, as may be prescribed.

(3) Seniority on initial appointment to a service, ¹[cadre] or post shall be determined as may be prescribed.

¹[(4) Seniority in a post, service or cadre to which a civil servant is promoted shall take effect from the date of regular appointment to that post :

Provided that civil servants who are selected for promotion to a higher post in one batch shall, on their promotion to the higher post, retain their *inter se* seniority as in the lower post.]

9. Promotion. —(1) A civil servant possessing such minimum qualifications as may be prescribed shall be eligible for promotion to a ²[higher] post for the time being reserved under the rules for departmental promotion in ³* * * the service or cadre to which he belongs. [:]⁴

⁴[Provided that the posts of—

- (a) Additional Secretary and Senior Joint Secretary may, in the public interest, be filled by promotion from amongst officers of regularly constituted Occupational Groups and services holding, on regular basis, posts in Basic Pay Scale 20; and
- (b) Secretary may, in the public interest, be filled by promotion from amongst officers of regularly constituted Occupational Groups and services holding, on regular basis, posts in Basic Pay Scale 21,

in such manner and subject to such conditions as may be prescribed.]

¹ Subs. by the Civil Servants (Amdt.) Ordinance, 1984 (3 of 1984), s. 3.

²Added by the Civil Servants (Amdt.) Ordinance, 1984 (3 of 1984), s. 4.

³Omitted *ibid*.

⁴Subs. and added by Ord. 33 of 01, s. 2 (w.e.f. 1-5-2000).

(2) A post referred to in sub-section (1) may either be a selection post or a non-selection post to which promotions shall be made as may be prescribed—

- (a) In the case of a selection post, on the basis of selection on merit ; and
- (b) in the case of a non-selection post, on the basis of seniority-*cum*-fitness.

¹[(3) Promotion to posts in basic pay scales 20 and 21 and equivalent shall be made on the recommendations of a Selection Board which shall be headed by the Chairman, Federal Public Service Commission.]

10. Posting and transfer. Every civil servant shall be liable to serve any where within or outside Pakistan, in any ²[equivalent or higher] post under the Federal Government, or any Provincial Government or local authority, or a corporation or body set up or established by any such Government ;

Provided that nothing contained in this section shall apply to a civil servant recruited specifically to serve in a particular area or region:

Provided further that, where a civil servant is required to serve in a post outside his service or cadre, his terms and conditions of service as to his pay shall not be less favourable than those to which he would have been entitled if he had not been so required to serve.

³[**10A. Restriction on service in international organization.**—(1) No civil servant shall, during his service, serve in any international organization, including an international non-governmental organization, international financial institution and foreign donor agency.

(2) The restriction under sub-section (1) shall not apply to a civil servant who is posted or deputed in such an organization on behalf of Pakistan or with prior permission of the Federal Government in accordance with rules, which shall be laid before both Houses of *Majlis-e-Shoora* (Parliament).]

11. Termination of service. —(1) The service of a civil servant may be terminated without notice—

- (i) during the initial or extended period of his probation :

Provided that, where such civil servant is appointed by promotion on probation or, as the case may be, is transferred from one ⁴[service], cadre or post to another ⁴[service], cadre or post, his service shall not be so terminated so long as he holds a lien against his former post in such ⁴[service], cadre or post but he shall be reverted to his former ⁴[service], cadre or post as the case may be ;

- (ii) on the expiry of the initial or extended period of his employment ; or

¹Added by Civil Servants (Amendment) Ordinance No. XLIII of 2000, dated 6-7-2000

²Ins. by the Civil Servants (Amdt.) Act, 1996 (5 of 1996), s. 3.

³Ins. By Act XVII of 2016, s.2.

⁴Subs. by Ord. 3 of 1984, s. 5.

- (iii) if the appointment is made *ad hoc* terminable on the appointment of a person on the recommendation of the selection authority, on the appointment of such person.

(2) Where, on the abolition of a post or reduction in the number of posts in a cadre or ¹[service], the services of a civil servant are required to be terminated, the person whose services are terminated shall ordinarily be the one who is the most junior in such cadre or ¹[service].

(3) Notwithstanding the provisions of sub-section (1), but subject to the provisions of sub-section (2), the service of a civil servant in temporary employment or appointed *ad hoc* shall be liable to termination on fourteen days' notice or pay in lieu thereof.

²**[11A. Absorption of civil servants rendered surplus.**—Notwithstanding anything contained in this Act, the rules, agreement, contract or the terms and conditions of service, a civil servant who is rendered surplus as a result of re-organization or abolition of a Division, department, office or abolition of a post in pursuance of any Government decision may be appointed to a post, carrying basic pay scale equal to the post held by him before such appointment, if he possesses the qualifications and fulfils other conditions applicable to that post :

Provided that where no equivalent post is available he may be offered a lower post in such manner, and subject to such conditions, as may be prescribed and where such civil servant is appointed to a lower post the pay being drawn by him in the higher post immediately preceding his appointment to a lower post shall remain protected.]

³**[11B.—(1)** Where it is brought to the notice of the appointing authority that appointment of a person to a civil post was made without observing the prescribed procedure or without fulfilling the prescribed qualification, experience and age limit, it may send a reference to the Federal Public Service Commission for determination whether he is fit to hold the post to which he was appointed and, if not, whether he is fit to hold any other post compatible with his qualification and experience.

(2) On receipt of the advice of the Federal Public Service Commission on a reference made under sub-section (1), the appointing authority may pass such order of appointment or termination of service as may be considered by it to be just and equitable :

Provided that if it is proposed to pass order of termination of service in the light of the advice of the Commission, a reasonable opportunity of showing cause against the order of termination, shall be provided.

(3) Where an order of appointment is made on the advice of the Commission, it shall be treated as a case of fresh appointment and seniority of such an appointee shall be determined in accordance with the Civil Servants (Seniority) Rules, 1993.]

¹ Subs. by Ord. No. 3 of 1984, s. 5.

² Added by Ord. No. 20 of 2001, s. 2.

³ Ins. by Ord. No. 130 of 2002, s. 2.

¹**[12. Reversion to lower post, etc.—(1)** A civil servant appointed to a higher post on *ad*

hoc, temporary or officiating basis shall be liable to reversion to his lower post.

(2) No civil servant shall be dismissed or removed from service or reduced in rank by an authority subordinate to that by which he was appointed.

(3) No such civil servant as aforesaid shall be dismissed or removed from service, or reduced in rank, until he has been given a reasonable opportunity of showing cause against the action proposed to be taken against him:

Provided that this sub-section shall not apply—

- (i) where a civil servant is dismissed or removed from service or reduced in rank on the ground of conduct which has led to his conviction on a criminal charge ; or
- (ii) where the President or any person authorised by him under the rules is satisfied, for reasons to be recorded in writing, that in the interest of the security of Pakistan or any part thereof, it is not expedient to give to that civil servant such an opportunity.]

²[12A. * * * * *]

³[13. **Retirement from service.**—(1) A civil servant shall retire from service—

- (i) on such date after he has completed ⁴[twenty] years of service qualifying for pension or other retirement benefits as the competent authority may, in public interest, direct; or
- (ii) where no direction is given under clause (i), on the completion of the sixtieth year of his age.

(2) No direction under clause (i) of sub-section (1) shall be made until the civil servant has been informed in writing of the grounds on which it is proposed to make the direction, and has been given a reasonable opportunity of showing cause against the said direction.

Explanation: In this Section, “competent authority” means the appointing authority prescribed in rule 6 of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973.]

¹ Subs. by Ord. 5 of 1996, s. 4.

² Section 12A Omitted by Act IX of 2016 s. 4.

³Subs. by Ord. 20 of 2000, s. 2.

⁴ Subs. by Ord. 34 of 2001, s. 2.

14. Employment after retirement.—(1) A retired civil servant shall not be re-employed under the Federal Government, unless such re-employment is necessary in the public interest and is made with the prior approval of the authority next above the appointing authority :

Provided that, where the appointing authority is the President, such re-employment may be ordered with the approval of the President.

(2) Subject to the provisions of sub-section (1) of section 3 of the *Ex-Government Servants (Employment with Foreign Governments) (Prohibition) Act, 1966* (XII of 1966), a civil servant may, during leave preparatory to retirement, or after retirement from Government service, seek any private employment:

Provided that, where employment is sought by a civil servant while on leave preparatory to retirement or within two years of the date of his retirement, he shall obtain the prior approval of the prescribed authority.

15. Conduct. The conduct of a civil servant shall be regulated by rules made, or instructions issued, by Government or a prescribed authority, whether generally or in respect of a specified group or class of civil servants.

16. Efficiency and discipline. A civil servant shall be liable to prescribed disciplinary action and penalties in accordance with the prescribed procedure.

17. Pay. A civil servant appointed to a post ^{1*} shall be entitled, in accordance with the rules, to the pay sanctioned for such post ^{1*}.

Provided that, when the appointment is made on a current charge basis or by way of additional charge, his pay shall be fixed in the prescribed manner :

Provided further that where a civil servant has, under an order which is later set aside, been dismissed or removed from service or reduced in rank, he shall, on the setting aside of such order, be entitled to such arrears of pay as the authority setting aside such order may determine.

18. Leave. A civil servant shall be allowed leave in accordance with the leave rules applicable to him, provided that the grant of leave will depend on the exigencies of service and be at the discretion of the competent authority.

19. Pension and gratuity.—(1) On retirement from service, a civil servant shall be entitled to receive such pension or gratuity as may be prescribed.

(2) In the event of the death of a civil servant, whether before or after retirement, his family shall be entitled to receive such pension, or gratuity, or both, as may be prescribed.

(3) No pension shall be admissible to a civil servant who is dismissed or removed from service for reasons of discipline, but Government may sanction compassionate allowance to such a civil servant, not exceeding two-thirds of the pension or gratuity which would have been admissible to him had he been invalided from service on the date of such dismissal or removal.

¹Omitted by the Civil Servants (Amdt.) Ordinance, 1984 (3 of 1984), s. 8.

(4) If the determination of the amount of pension or gratuity admissible to a civil servant is delayed beyond one month of the date of his retirement or death, he or his family, as the case may be, shall be paid provisionally such anticipatory pension or gratuity as may be determined by the prescribed authority, according to the length of service of the civil servant which qualifies for pension or gratuity; and any overpayment consequent on such provisional payment shall be adjusted against the amount of pension or gratuity finally determined as payable to such civil servant or his family.

20. Provident Fund.—(1) Before the expiry of the third month of every financial year, the accounts officer or other officer required to maintain provident fund accounts shall furnish to every civil servant subscribing to a provident fund the account of which he is required to maintain a statement under his hand showing the subscriptions to, including the interest accruing thereon, if any, and withdrawals or advances from his provident fund during the preceding financial year.

(2) Where any subscription made by a civil servant to his provident fund has not been shown or credited in the account by the accounts or other officer required to maintain such account, such subscription shall be credited to the account of the civil servant on the basis of such evidence as may be prescribed.

21. Benevolent Fund and Group Insurance. All civil servants and their families shall be entitled to the benefits admissible under the Federal Employees Benevolent Fund and Group Insurance Act, 1969 (II of 1969), and the rules made thereunder.

22. Right of appeal or representation.—(1) Where a right to prefer an appeal or apply for review in respect of any order relating to the terms and conditions of his service is provided to a civil servant under any rules applicable to him, such appeal or application shall, except as may be otherwise prescribed, be made within thirty days of the date of such order.

(2) Where no provision for appeal or review exists under the rules in respect of any order or class of orders, a civil servant aggrieved by any such order may, within thirty days of the communication to him of such order, make a representation against it to the authority next above the authority which made the order :

Provided that no representation shall lie on matters relating to the determination of fitness of a person to hold a particular post or to be promoted to a higher post or grade.

CHAPTER III

MISCELLANEOUS

23. Saving. Nothing in this Act or in any rule shall be construed to limit or abridge the power of the President to deal with the case of any civil servant in such manner as may appear to him to be just and equitable :

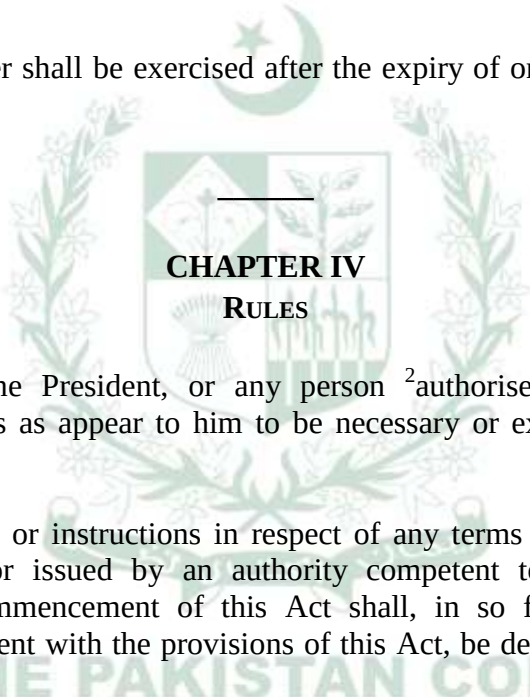
Provided that, where this Act, or any rule is applicable to the case of a civil servant, the case shall not be dealt with in any manner less favourable to him than that provided by this Act or such rule.

¹[23A. **Indemnity.** No suit, prosecution or other legal proceedings shall lie against a civil servant for anything done in his official capacity which is in good faith done or intended to be done under this Act or the rules, instructions or directions made or issued thereunder.]

23B. Jurisdiction barred. Save as provided under this Act and the Service Tribunals Act, 1973 (LXX of 1973), or the rules made thereunder, no order made or proceedings taken under this Act, or the rules made thereunder by the President or any officer authorized by him shall be called in question in any Court and no injunction shall be granted by any Court in respect of any decision made, or proceedings taken in pursuance of any power conferred by, or under, this Act or the rules made thereunder.]

24. Removal of difficulties. If any difficulty arises in giving effect to any of the provisions of this Act, the President may make such order, not inconsistent with the provisions of this Act, as may appear to him to be necessary for the purpose of removing the difficulty :

Provided that no such power shall be exercised after the expiry of one year from the coming into force of this Act.



CHAPTER IV RULES

25. Rules. —(1) The President, or any person ²authorised by the President in this behalf, may make such rules as appear to him to be necessary or expedient for carrying out the purposes of this Act.

(2) Any rules, orders or instructions in respect of any terms and conditions of service of civil servants duly made or issued by an authority competent to make them and in force immediately before the commencement of this Act shall, in so far as such rules, orders or instructions are not inconsistent with the provisions of this Act, be deemed to be rules made under this Act.

26. [Repeal] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981) s. 3 and Sch., II.*

¹ Ins. by Ord. 61 of 2001, s. 2.

²i.e PM see S.R.O., 120(1)/98, dt. 27-2-98 Now CE by Act 5 (2) of PCO, 1999.